

1 new evidence or new information has been inserted by
2 yourself.

3 So those two clauses alone, there was no
4 request for a code here. You provided a code.

5 Then the second one, they asked for a code
6 which was outside -- which was extraneous information
7 that was not introduced in the evidence.

8 That is grounds for a mistrial.

9 MS. NAVARATNASINGHAM: Your Honor,
10 Officer Fernandez -- the question specifically was
11 asked to Officer Fernandez, who testified -- excuse
12 me -- his testimony about the term of a vehicle. So
13 to provide that clarification of a legal definition
14 from the Vehicle Code, we think it is appropriate.

15 As to the other sections that was simply
16 asking for another Jury instruction and the Court
17 instructed them not to consider that, and there is no
18 evidence there has been any prejudice to Plaintiff
19 because of that.

20 MR. ROSARIO: Absolutely that is prejudice.
21 The officer and the Defense had an opportunity to
22 enter that Vehicle Code as well as the definition of a
23 vehicle in their evidence. They did not do that.
24 Inserting that information into the Jury after the
25 fact, after they have gone into the sealed room back
26 there, essentially, is extraneous influence over the
27 Jury and their knowledge about this case.

28 Secondly, them asking for that information in